

# **Tentative Rulings for September 15, 2026**

## **Department 4**

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME               | HEARING NAME                                                                                                                                                                  |
|-------------|-------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVRI2302604 | ABDULLAH VS CHENG, M.D. | MOTION TO COMPEL DEFENDANT JEAN CHENG, M.D., INC., DBA BEST LASIK LASER EYE CENTER TO (1) COMPLY WITH THIS COURT'S MAY 7, 2026 ORDER, (2) VERIFY ITS SECOND FURTHER RESPONSES |

**Tentative Ruling:**

GRANT the motion to compel compliance. Best Lasik Laser Eye Center (BLLEC) is Ordered to serve a verification to its second set of further responses, dated May 27, 2026, within 10 days. The Motion is denied as to the request to compel revised verifications to its first set of further responses, dated January 14, 2026, as moot.

GRANT the Motion to Compel further responses to the Request for Production Nos. 37-40 and 42. BLLEC is Ordered to serve further verified responses that contain the requested files, images and ESI within 20 days.

BLLEC is sanctioned in the sum of \$1,707.36, payable to Plaintiff's counsel within 30 days.

2.

| CASE #      | CASE NAME                     | HEARING NAME                                                      |
|-------------|-------------------------------|-------------------------------------------------------------------|
| CVRI2503944 | AMAYA VS GLS US FREIGHT, INC. | MOTION TO BE RELIEVED AS COUNSEL FOR MOUNTAIN VALLEY EXPRESS, LLC |

**Tentative Ruling:**

GRANT

3.

| CASE #      | CASE NAME                          | HEARING NAME                 |
|-------------|------------------------------------|------------------------------|
| CVRI2602076 | ROMERO VS SPECIALTY BUILDERS, INC. | MOTION TO COMPEL ARBITRATION |

**Tentative Ruling:**

DENY

Defendant Specialty Builders Inc. now moves to compel arbitration of Plaintiff's claims with ADR Services, Inc. ("ADR"). Plaintiffs oppose, stating that they properly sought

arbitration under the BBB, and that when Defendant failed to respond to Plaintiffs' Complaint to the BBB, they escalated their Complaint to the AAA. Defendant contends that it did not consent to AAA arbitration because the arbitration agreement calls for arbitration through the BBB. Defendant argues that it was unaware that its accreditation with the BBB had been dropped as of September 5, 2025. The AAA closed the arbitration file administratively after Defendant failed to deposit its share of the arbitration fees.

Under *Hohenshelt v. Superior Court* (2025) 18 Cal.5<sup>th</sup> 310, if the drafting party fails to pay the fees and costs required to conduct the arbitration within 30 days, the consumer has the unilateral right to withdraw from arbitration and proceed in a court of appropriate jurisdiction. The Supreme Court in *Hohenshelt* recognized that a court may grant relief from the forfeiture of the right to arbitrate if the failure to pay resulted from a good faith mistake, inadvertence, or other excusable neglect, and was not willful, grossly negligent, or fraudulent. (*Id.*) Excusable neglect is found where a reasonably prudent person under similar circumstances might have made the same error. (*Zamora v. Clayborne Contracting Group, Inc.* (2002) 28 Cal.4<sup>th</sup> 249, 258) Gross negligence involves the extreme departure from the ordinary standard of conduct. (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4<sup>th</sup> 747, 754.)

Here, there is no dispute that Defendant failed to pay its arbitration fees to AAA. The issue is whether the failure to pay was "willful, grossly negligent, or fraudulent," or, as Defendant maintains, the result of a "good faith mistake."

The court concludes that this is a case of a willful failure to pay the arbitration fees, and not the result of a good faith mistake. Here, Defendant drafted the arbitration provision stating that arbitration was to be with the BBB if it was a member, and if not, the AAA rules would apply. It was Defendant's responsibility to know whether or not it was a member of the BBB, especially since this was the entire basis for its refusal to proceed with the AAA arbitration. Defendant states that it was unaware that its accreditation had been dropped as of September 5, 2025, but there is no information regarding when Defendant found out about the lack of accreditation. Moreover, Defendant knew of Plaintiffs' attempts to arbitrate their claims with the BBB first, before initiating arbitration with AAA, since Defendant made multiple responses to Plaintiffs' BBB Complaint. (Decl. M. Romero at Paras. 6-8, 10-11, 14-15, Ex.2) Finally, AAA notified Defendant on multiple occasions that the arbitration would be closed if Defendant did not pay the fees it owed, and Defendant chose not to pay. (Decl. of M. Romero, Paras. 23-24, 27-28, 31; Exs. 5-7.) Defendant made a calculated, strategic decision to withhold payment in the AAA arbitration. This decision was not the result of a good faith mistake or excusable neglect, but rather the product of a willful and/or grossly negligent decision. Defendant has waived its right to compel arbitration under CCP § 1281.98(a)(1).

**4.**

| CASE #     | CASE NAME                                         | HEARING NAME                       |
|------------|---------------------------------------------------|------------------------------------|
| RIC1710268 | WEIMER VS KOMAR<br>DISTRIBUTION<br>SERVICES, INC. | MOTION FOR SUMMARY<br>ADJUDICATION |

**Tentative Ruling:**

Continue Motion for Summary Adjudication and the Status Conference to January 12, 2027, at 8:30am, D-4.